

ARTICLE VI
Water Use Restriction

[Adopted 2-3-1998 by Doc. 31; amended in its entirety 8-23-2016 by Doc. 92-B]

§ 250-22. Authority.

This article is adopted by the City under its police powers to protect public health and welfare and its powers under MGL c. 40, § 21 et seq., and implements the City's authority to regulate water use pursuant to MGL c. 41, § 69B. This article also implements the City's authority under MGL c. 40, § 41A, conditioned upon a declaration of water supply emergency issued by the Commonwealth of Massachusetts Department of Environmental Protection (MassDEP).

§ 250-23. Purpose.

The purpose of this article is to protect, preserve and maintain the public health, safety and welfare whenever there is in force a State of Water Supply Conservation or State of Water Supply Emergency by providing for enforcement of any duly imposed restrictions, requirements, provisions or conditions imposed by the City or by the Department of Environmental Protection.

§ 250-24. Definitions.

As used in this article, the following terms shall have the meanings indicated:

AGRICULTURE — Farming in all its branches as defined at MGL c. 128, § 1A.

AUTOMATIC SPRINKLER SYSTEM — Any system for watering vegetation other than a hand-held hose or a bucket.

NONESSENTIAL OUTDOOR WATER USE — Those uses that are not required:

- A. For health or safety reasons;
- B. By regulation;
- C. For the production of food and fiber;
- D. For the maintenance of livestock; or
- E. To meet the core functions of a business (for example, irrigation by golf courses as necessary to maintain tees and greens, and limited fairway watering, or irrigation by plant nurseries or agricultural operations as necessary to maintain stock or establish new plantings, wash equipment to prevent damage and/or maintain performance, pest management and plant cooling).

PERSON — Any individual, corporation, trust, partnership or association, or other entity.

STATE OF WATER SUPPLY CONSERVATION — A State of Water Supply Conservation declared by the City pursuant to § 250-25 of this article.

STATE OF WATER SUPPLY EMERGENCY — A state of water supply emergency declared by the Department of Environmental Protection under MGL c. 21G, §§ 15 through 17.

SUPPLY CAPACITY — A specific relationship between a reservoir's level and storage capacity

expressed in percent.

WATER CONSUMERS — All public and private users of the City's public water system, irrespective of any person's responsibility for billing purposes for water used at any particular facility.

§ 250-25. Declaration of State of Water Supply Conservation.

The City, through its Water Division, may declare a State of Water Supply Conservation upon a determination by the Director or Deputy Director of Public Works that a shortage of water exists and conservation measures are appropriate to ensure an adequate supply of water to all water consumers and to ensure compliance with the City's obligation under the Water Management Act. Public notice of a State of Water Supply Conservation shall be given under § 250-27 of this article before it may be enforced.

§ 250-25.1. Method of determining a State of Water Supply Conservation.

- A. The City, through its Water Division, shall monitor the state of water supply. The City shall implement water conservation measures in stages based on trigger levels as set forth below.

Drought Status	Trigger Level	Trigger Action
Watch	5% reduction in Kenoza Lake supply capacity	Notice may be issued to all water consumers of the drought watch condition in accordance with § 250-27.
Warning	10% reduction in Kenoza Lake supply capacity	Notice shall be issued to all water consumers of the drought warning status in accordance with § 250-27. All water consumers may be requested to enact water conservation measures as described in § 250-26 on a voluntary basis.
Emergency	20% reduction in Kenoza Lake supply capacity	Notice shall be issued to all water consumers of the drought emergency status in accordance with § 250-27. All water consumers shall be required to comply with mandatory water conservation measures as described in § 250-26. All water consumers shall also be required to comply with any additional mandatory water conservation measures as may be mandated by the city through its Water Division.

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Drought Status	Trigger Level	Trigger Action
Critical	35% reduction in Kenoza Lake supply capacity	Notice shall be issued to all water consumers of the critical drought status in accordance with § 250-27. All water consumers shall be required to comply with mandatory water conservation measures as described in § 250-26 in addition to those additional measures enacted to preserve the public water supply.

- B. In the event that the trend of the City's water supply is declining at a rate, as monitored and forecast by the Water Division, the City may elect to enact any one of the above drought status conditions to preserve the condition of the water supply.

§ 250-26. Restricted nonessential outdoor water uses.

A declaration of a State of Water Supply Conservation shall include one or more of the following restrictions, conditions, or requirements limiting the use of water as necessary to protect the water supply. The applicable restrictions, conditions or requirements, as determined by the Director or Deputy Director of Public Works, shall be included in the public notice required under § 250-27.

- A. Nonessential outdoor water use days. Nonessential outdoor water use, by water users, is permitted only on the days per week specified in the State of Water Supply Conservation or State of Water Supply Emergency and public notice thereof.
- B. Nonessential outdoor water use ban. Nonessential outdoor water use is prohibited at all times.
- C. Nonessential outdoor water use hours. Nonessential outdoor water use is permitted only during the hourly periods specified in the declaration of a State of Water Supply Conservation and public notice thereof.
- D. Automatic sprinkler use. The irrigation of lawns via sprinklers or automatic irrigation systems is prohibited.
- E. All other nonessential outdoor water use not specifically mentioned above as specified in the State of Water Supply Conservation or State of Water Supply Emergency and public notice thereof.

§ 250-26.1. Exceptions to nonessential outdoor water use.

- A. Unless the drought status reaches emergency or critical, as certified by the Water Division and the Director of Public Works or Deputy Director of Public Works, then the following items may be exempted as nonessential outdoor water use.
 - (1) Irrigation with harvested and stored stormwater runoff;
 - (2) Water use for the purposes of agriculture;
 - (3) To meet the core functions of a business (for example, irrigation by golf courses as necessary to maintain tees and greens, and limited fairway watering, or irrigation by

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plant nurseries or agricultural operations as necessary to maintain stock or establish new plantings, wash equipment to prevent damage and/or maintain performance, pest management and plant cooling).

- B. The following outdoor water uses are subject to review and approval by the City, through its Water Division:
- (1) Irrigation of public parks and recreation fields by automatic sprinkler before 7:00 a.m. and after 7:00 p.m.;
 - (2) Irrigation to establish replanted or resodded lawn or plantings during the months of May and September;
 - (3) Irrigation of newly planted lawns (seeded or sodded) in the current calendar year for homes or businesses newly constructed in the previous 12 months;
 - (4) Irrigation of gardens, flowers and ornamental plants by means of hand-held hose or drip irrigation systems; and
 - (5) Irrigation of established lawns by means of a hand-held hose only.

§ 250-27. Public notification of State of Water Supply Conservation; notification of MassDEP.

- A. Notification of any provisions, restrictions, requirements or conditions imposed by the City as part of a State of Water Supply Conservation shall be published in a newspaper of general circulation within the City, or by such other means reasonably calculated to reach and inform all users of water of the State of Water Supply Conservation. Any restriction imposed under this section shall not be effective until such notification is provided, but no later than 48 hours after the declaration of a State of Water Supply Conservation. The City may also notify the public using other means determined to be appropriate. Notification may also include e-mail, websites, public service announcements on local media or other such means.
- B. Submittal of MassDEP's form "Notification of Water Use Restriction" shall be provided to the Massachusetts Department of Environmental Protection per MassDEP regulations [310 CMR 22.15(8)].

§ 250-28. Termination of State of Water Supply Conservation; notice.

A State of Water Supply Conservation may be terminated by the Director or Deputy Director of Public Works of the Water Division upon a determination that the water supply shortage no longer exists. Public notification of the termination of a State of Water Supply Conservation shall be given in the same manner required by § 250-27 for notice of its imposition.

§ 250-29. State of Water Supply Emergency; compliance with MassDEP orders.

- A. Upon notification to the public that a declaration of a State of Water Supply Emergency has been issued by the Department of Environmental Protection, no person shall violate any provision, restriction, requirement, condition of any order approved or issued by the Department intended to bring about an end to the state of emergency.

- B. Notification of any provisions, restrictions, requirements or conditions imposed by the declaration of a State of Water Supply Emergency shall be published in a newspaper of general circulation within the City, or by such other means reasonably calculated to reach and inform all users of water of the State of Water Supply Emergency. Any restriction imposed under this section shall not be effective until such notification is provided, but no later than 48 hours after the declaration of a State of Water Supply Emergency. The City may also notify the public using other means determined to be appropriate. Notification may also include e-mail, websites, public service announcements on local media or other such means.

§ 250-29.1. Termination of State of Water Supply Emergency; compliance with MassDEP orders.

Upon notification to the City that the declaration of a State of Water Supply Emergency has been terminated by the Department of Environmental Protection, the public will be notified of the termination in the same manner as is required by § 250-29 for notice of its imposition.

§ 250-30. Violations and penalties.

- A. Any person violating this article shall be liable to the City in the amount listed below:
- (1) First violation: warning.
 - (2) Second violation: \$50.
 - (3) Third and subsequent violations: \$100 and may be subject to termination of water service.
- B. Fines shall inure to the City for such uses as the Director or Deputy Director of Public Works may direct. Each day of violation shall constitute a separate offense. Fines shall be recovered by indictment, or by complaint before the District Court, or by noncriminal disposition in accordance with MGL c. 40, § 21D. For purposes of noncriminal disposition, the enforcing person shall be any police officer of the City or the Director or Deputy Director of Public Works or their designee. If a State of Water Supply Emergency has been declared, the Water Division may, in accordance with MGL c. 40, § 41A, shut off the water at the meter or the curb stop.

§ 250-30.1. Severability.

The invalidity of any portion or provision of this article shall not invalidate any other portion or provision thereof.